

Amendment No. 1 to SB2172

Reeves
Signature of Sponsor

AMEND Senate Bill No. 2172*

House Bill No. 2202

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 11-13-104, is amended by adding the following language under the designation "Class II Pastoral River Areas":

Big South Fork of the Cumberland River – The entire segment of the river in Scott County.

SECTION 2. Tennessee Code Annotated, Section 11-13-111(b), is amended by adding the following as a new subdivision (2) and redesignating the existing subdivision (2) as subdivision (3):

(2)

(A) Except as provided in subdivision (b)(2)(B), a landfill for the disposal of solid or hazardous wastes is not permitted within the entirety of the territory of a county in which two (2) rivers join to form a Class II river that flows through a national river and recreation area and, upon crossing the border of that county, enters the territory of a neighboring state.

(B) Subdivision (b)(2)(A) does not prohibit a permit renewal for, or expansion of, a landfill that is operating under a valid permit on the date that this act becomes a law.

SECTION 3. Tennessee Code Annotated, Section 68-211-118, is amended by adding a new subsection (c):

(c) Section 11-13-111 and subsection (a) do not apply to the operation, modification, or expansion of any landfill that is:

(1) In operation on the date that this act becomes a law; and

(2) Operating with a valid permit on January 1, 2026.

SECTION 4. Tennessee Code Annotated, Section 68-211-118(b), is amended by deleting "this section" and substituting "subsection (a)".

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it, and applies to permits that are issued on or after such date.